

Mukeem Khan v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 April 2023 · WRIT - C No. - 13477 of 2023 · **Petition disposed; assessment to be finalised under the Supply Code.**

HEADNOTE

Writ against a provisional assessment notice for unauthorised use disposed of. Respondent no. 3 must consider the objection already filed and finalise the assessment strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mukeem Khan approached the Allahabad High Court against a provisional assessment notice dated 21 April 2022, issued by respondent no. 3 in a case of unauthorised use of electricity. His counsel admitted that an objection to the notice had already been filed. Counsel for the Electricity Department stated that the objection would be considered before the assessment order was finalised. The petition was then disposed of.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

finalising provisional assessment for unauthorised use

HOLDING

Where the consumer has already objected to a provisional assessment notice for unauthorised use, the assessing authority must consider that objection and finalise the assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

supply-code-procedure-on-finalising-assessment

Respondent no. 3 must consider the objection already filed against the provisional assessment notice for unauthorised use and finalise the assessment strictly under the procedure in the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 21.04.2022 AND THE QUANTUM OF ANY FINAL ASSESSMENT FOR UNAUTHORISED USE.

Left to respondent no. 3 to consider the objection and finalise the assessment under the Supply Code. ¶ 1